

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	
Caryn Benevento-Munroe	)	Docket No. 2020-49
License Nos. 068.0068550	)	
097.0070115	)	

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, by and through Prosecuting Attorney Jennifer B. Colin, and Respondent Caryn Benevento-Munroe, who hereby Stipulate and Agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Licensed Clinical Mental Health Counselors ("LCMHC") and Non-Licensed and Non-Certified Psychotherapists ("NNP"); issue warnings or reprimands, suspend, revoke, limit, condition, deny, or prevent the renewal of licenses if, after disciplinary hearing, it finds that Respondent has engaged in unprofessional conduct. 3 V.S.A. §§129, 129a; 26 V.S.A. Chapters 65 and 78; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Stipulated Facts

2. Caryn Benevento-Munroe ("Respondent") of Jericho, Vermont is licensed by the State of Vermont as a Clinical Mental Health Counselor under license number 068.0000569. The license was first issued on May 17, 2013 and expired on January 31, 2019.
3. Respondent is also on the State of Vermont Roster of Non-Licensed and Non-Certified Psychotherapists under license number 097.0070115. Respondent was rostered on August 3, 2010 and expired on November 30, 2014.
4. In 2017 and 2018, Respondent practiced as a licensed mental health counselor in Jericho, Vermont.
5. Respondent indicated to the OPR investigator that her therapeutic approach was alternative and included Family Systems theory, Jungian theory (archetype analysis), Freudian theory, Cognitive Behavioral theory, Past-Life Regression therapy, and Narrative theory.

6. Respondent provided mental health counseling to K.H. ("Client") on a weekly basis from June 2017 to April 2018.
7. A primary focus of Client's mental health counseling was disentangling from enmeshment and learning to not engage in the pattern of enmeshment.
8. During the course of Client's mental health counseling, Respondent led Client to believe that Respondent was Client's mother in a past life and that, also in a past life, Respondent had been connected to Client's former domestic partner.
9. On April 2, 2018, Client asked Respondent, via text message, to help heal her legs. Respondent communicated with Client via text message that Respondent would "tap into" Client from her (Respondent's) porch so that she could help heal Client's legs.
10. In the text messages on April 2, 2019, Respondent told Client that her legs were bear legs and the legs of a protector; that Client's bear was dancing around and playing bongos with Respondent's bear; and that dancing with them there were also several opossum, which were animal identities of people known to Client.
11. Respondent attempted to form a non-clinical relationship/friendship with Client in the spring of 2018 while they still had an ongoing therapeutic relationship.
12. In the spring of 2018, Respondent started a group she referred to as a "Coven" and invited into the group Respondent's friends and Client.
13. Respondent participated as an equal member in the group, as did Client.
14. Respondent did not document the extension of counseling boundaries in Client's counseling records or any consultation with Client regarding risks/benefits of entering a non-therapeutic friendship with Client.
15. After the group met a few times, Respondent suggested, and Client agreed, that Client transition out of individual therapy.
16. Respondent and Client's last individual therapy session occurred on April 16, 2018.
17. After her individual therapy ended and after she participated in the group for a time, Client informed Respondent that Client had boundary concerns about their friendship.
18. After Client mentioned her concerns about boundaries to Respondent, Respondent ended her participation in the group and ceased communications with Client.

19. In over 40 Progress Notes Respondent created for Client, all notes contained the exact same words describing, from week to week, Client's mood, concerns expressed, recent stressors, physical characteristics, functioning, health, assessments, interventions and goals.
20. According to Respondent's treatment documents, Respondent did not complete a discharge summary for Client.

Violation One: 3 V.S.A. §129a(b)(1) Performance of unsafe or unacceptable patient or client care.

21. Paragraphs 3 through 20 above are incorporated herein.
22. Vermont law requires LCMHC's and NNP's to practice competently by providing safe and acceptable client care.
23. Paragraphs 2 through 20 above demonstrate that Respondent failed to provide safe and acceptable client care by leading Client to believe that Respondent was her mother in a past life and that Respondent was connected to Client's former domestic partner in a past life.
24. Paragraphs 2 through 20 above demonstrate that Respondent failed to provide safe and acceptable client care by failing to maintain accurate client records and failing to complete a discharge summary for Client.
25. Paragraphs 2 through 20 above demonstrate that Respondent failed to provide safe and acceptable client care by entering a dual relationship with Client.
26. Paragraphs 2 through 20 above demonstrate that Respondent failed to provide safe and acceptable client care by claiming to "tap in" to Client for healing and text with Client about their dancing bear identities playing bongos together.
27. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(1).

Violation Two: 26 V.S.A. §3271(a)(6) Entering an additional relationship with a client that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with his or her professional obligations.

28. Paragraphs 2 through 20 above are incorporated herein.
29. As a LCMHC, Respondent must refrain from entering an additional relationship with a client that might impair her objectivity or otherwise interfere with her professional obligations.

30. Paragraphs 2 through 20 above demonstrate that Respondent entered an additional relationship with Client, a friendship outside of the therapeutic relationship, that might have impaired Respondent's objectivity or otherwise interfered with her professional obligations.
31. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. §3271(a)(6).

Violation Three: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

32. Paragraphs 2 through 20 above are incorporated herein.
33. The essential standards of acceptable and prevailing practice require a LCMHC and NNP to maintain appropriate boundaries with clients and former clients and avoid entering non-professional relationships with clients/former clients when such a relationship may be harmful to the client.
34. Paragraphs 2 through 20 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by violating professional boundaries, entering a non-therapeutic relationship with Client and engaging in conduct that is potentially harmful to that Client.
35. The essential standards of acceptable and prevailing practice require a LCMHC and NNP to officially document, prior to a non-therapeutic interaction with a client/former client (when feasible) the extension of the counseling boundaries beyond conventional parameters. *See ACA Code of Ethics, Standards A.6.c.*
36. The essential standards of acceptable and prevailing practice require a LCMHC and NNP to take appropriate professional precautions, such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs to the client when extending professional boundaries. *See ACA Code of Ethics, Standards A.6.b.*
37. Paragraphs 2 through 20 above demonstrate that Respondent failed to take appropriate precautions when entering a non-therapeutic friendship with Client, failed to consult with client regarding the risks and benefits of extending the boundaries of the therapeutic relationship, and failed to take steps to ensure that her judgment was not impaired and that no harm would occur to client when extending the professional boundaries.

Violation Four: 3 V.S.A. §129a(a)(20) Offering, undertaking, or agreeing to cure or treat a disease or disorder by a secret method, procedure, treatment or medicine.

- 38. Paragraphs 2 through 20 above are incorporated herein.
- 39. Vermont law prohibits a licensed professional from offering, undertaking, or agreeing to cure or treat a disease or disorder by a secret method, procedure, treatment or medicine.
- 40. Paragraphs 9 and 10 above demonstrate that Respondent offered, undertook and agreed to heal Client's legs by "tapping into" Client and then told Client that her legs were bear legs and the legs of a protector; that Client's bear was dancing around and playing bongos with Respondent's bear; and that dancing with them there were also several opossum, which were animal identities of people known to Client.
- 41. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for summary suspension because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(20).

Understandings

- 42. Respondent admits that the facts above are true and desires to voluntarily surrender her Clinical Mental Health Counselor license and her entry on the Roster of Non-Licensed and Non-Certified Psychotherapists. The Parties reach a full and final Stipulation pursuant to these Understandings, the Acceptance of Voluntary Surrender, and Order below.
- 43. Respondent understands that the Board must review and accept the terms of the Stipulated Voluntary Surrender of License. If the Board rejects any portion, the entire Stipulated Voluntary Surrender of License shall be null and void.
- 44. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her right to a fair and impartial hearing in the future if this agreement is not accepted by the Board.
- 45. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
- 46. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulated Voluntary Surrender of License.
- 47. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulated Voluntary Surrender of License.

48. Respondent voluntarily waives her right to a contested hearing before the Board of Allied Mental Health and waives any right to appeal from this Stipulated Voluntary Surrender of License.
49. Respondent agrees that the Acceptance of Voluntary Surrender and Order set forth below may be entered by the Board.

ACCEPTANCE OF VOLUNTARY SURRENDER AND ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health hereby **ACCEPTS** Respondent's **VOLUNTARY SURRENDER** of her Clinical Mental Health Counselor license and her entry on the Roster of Non-Licensed and Non-Certified Psychotherapists.
- B. Any future application for licensure shall be subject to the licensing requirements of that particular profession. If a future application for licensure in the State of Vermont is approved, that license shall be **CONDITIONED** pursuant to whatever terms are found to be reasonable at the time of Respondent's application for licensure, taking into account the stipulated facts above.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

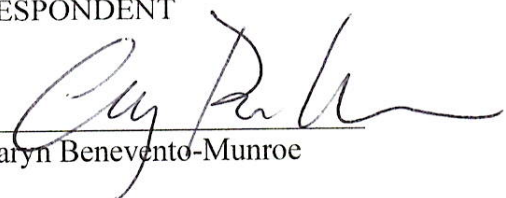
Dated: 7/21/2020

By: /s/ Jennifer B. Colin
Jennifer B. Colin
Prosecuting Attorney

RESPONDENT

Dated: 7.21.2020

By:


Caryn Benevento-Munroe

APPROVED AND SO ORDERED:

VERMONT BOARD OF
ALLIED MENTAL HEALTH
PRACTITIONERS

August 21, 2020
Dated: _____

E-SIGNED by Tammy Austin
on 2020-08-21 08:48:38 EDT
By: _____
Chairperson

Date of Entry: 8/20/2020